N6660426Q0473 Amendment 0001

The purpose of this amendment is to:

1. Provide revised specification to replace Attachment # 1 , see attached.
2. Provide revised drawings # 26-013A REV 1 to replace Attachment # 2, see attached.
3. Provide answers to RFI 001 as seen below

RFI 001

1. Panel Substitution
Please confirm whether the Tate Concore 1250, 1/16" Formica Stone Graffix panel is an acceptable substitution for the specified ASM-FS200D panel. Compatibility with understructure was confirmed on site walk. The Tate Concore 1250 has the same specified load capacity as the ASM-FS200D.

ANSWER: *Proposed materials will not be reviewed or approved through a solicitation RFI. All proposed "or equal" products must be submitted post-award through the formal submittal process for technical evaluation by the Government.*

2. Pipe Penetrations – Room 406
There are existing pipe/conduit penetrations adjacent to a column in Room 406. Please confirm whether a new chase wall will be constructed to encase the conduits, or if the conduits will be removed and reinstalled following installation of the new access flooring system, or if the new floor should be constructed with the conduits in place.

ANSWER: *Pipe and conduit are to remain in place. New chase wall is not in scope.*

3. Wall Between Rooms 406 and 407
The approximately 30-foot wall separating Rooms 406 and 407 appears to be constructed on top of the existing flooring system. Please confirm whether it is assumed that the bottom of the wall will need to be cut and reworked to accommodate the new access flooring system.

ANSWER: *No modifications are to be made to the Teknion wall. The wall system shall remain in place undisturbed. The new access flooring panels shall be cut and installed to abut the existing wall perimeter.*

4. Office Partitions – Phase 3
Please confirm whether the office partition dividers in Phase 3 will be removed prior to installation of the new access flooring system.

ANSWER: *All demountable furniture shall be removed prior to work starting in a new phase of the project with the exception of the Teknion Wall.*

5. Perforated Panels and Cutouts
Please confirm the required quantity of perforated access floor panels and the number of cutouts

required for cabling etc. The space was occupied during the walkthrough, making it difficult to obtain an accurate count.

ANSWER: *The perforated panels are not 1 for 1 to the existing panels. New perforated panels shall be installed under the awarded contractors discretion.*

6. Freight Elevator Access
Please confirm whether freight elevator access is available from the building entry level to the floor where the work is to be performed.

ANSWER: *Freight elevator will be available to use for the duration of this project.*

7. Storage Container Location
Please confirm whether an area outside Building 1346 will be designated and made available for placement of a storage container for the duration of the work.

ANSWER: *A storage container will not be able to be stored outside of Building 1346. There is no room without obstructing fire lanes and egress.*

8. Cove Base
The drawings indicate that existing cove base is to be replaced if damaged. Please confirm whether the contractor is only responsible for replacing cove base damaged during flooring operations, or if removal and replacement of cove base required to access/remove panels beneath existing walls should also be included in the base bid.

ANSWER: *Removal and replacement of cove base necessary to access, remove, and replace the floor panels is a contract requirement and shall be included in the base bid. Upon completion of flooring operations, the contractor shall reinstall the cove base or install new matching cove base in those areas to match existing conditions. Any cove base damaged outside of this process due to contractor negligence or improper construction operations shall be repaired or replaced at the contractor's sole expense.*

9. Freight Elevator
Please provide the freight elevator's interior dimensions, door opening dimensions, maximum load capacity, hours of availability, and any restrictions associated with its use for transporting demolition debris and new raised-floor panels to/from the fourth floor.

ANSWER: *Door Dimensions: 7' x 8', Interior Dimensions: 77" x 116", Capacity: 6000 LBS*

10. Wall Between Rooms 406 and 407
Based on the existing conditions observed during the site visit, portions of the wall between Rooms 406 and 407 appear to bear on or interface with the existing raised-floor system. Please confirm whether the Government will permit selective cutting/removal of drywall, cove base, studs, or other wall components where required to remove and replace raised floor panels. Please also clarify the required restoration of these wall components.

ANSWER: *No. Cutting, removal, or alteration of drywall, metal studs, or other structural wall components is not permitted. The contractor is responsible for utilizing non-destructive methods to remove and replace floor panels that abut the wall partitions without compromising the wall's integrity. Removal and reinstallation of existing cove base is permitted where required to access the panels, and must be restored to match existing conditions at no additional cost to the Government.*

11. Partition Between Rooms 407 and 407B
Please confirm whether the existing partition between Rooms 407 and 407B will remain in place throughout construction or will be removed by the Government or furniture contractor before raised floor replacement.

ANSWER: *Teknion wall is to remain in place.*

12. Room 407B Furniture Partitions
Please confirm whether the modular office furniture/workstation partitions located in Room 407B will be completely removed/relocated by the Government-provided furniture contractor before flooring work begins in that area.

ANSWER: *Furniture will be removed by others.*

13. Exterior Cutting Area / Electrical Power
The drawings require cutting of new raised floor panels in an approved area outside the building. Please confirm whether Government electrical power will be available at the designated exterior cutting location. If available, please identify the voltage, amperage and approximate receptacle location. If not, please confirm that the contractor should provide its own temporary power source.

ANSWER: *Power is available; Awarded Contractor is to submit area/location for cutting.*

14. Infinity Max-Air Panels
Please confirm whether the specified Infinity Max-Air steel slotted airflow panels are required to include adjustable underfloor dampers. If dampers are required, please identify the required type, configuration, or airflow performance criteria.

ANSWER: *See revision 1 of the design and specification.*

15. Perforated/Airflow Panel Quantity
The drawings indicate replacement at a ratio of one new Infinity Max-Air grate for every four existing perforated panels removed. Please provide the existing perforated-panel quantity by room/phase, if available, or confirm that bidders are responsible for field verifying this quantity. Please also confirm whether the new airflow panels are to remain at existing locations or be positioned according to a new airflow layout.

ANSWER: *See revision 1 of the design and specification*

16. Existing Pedestal/Stringer Framework
The contract documents require the existing framework to remain and be cleaned, adjusted, and leveled prior to installation of the new panels. If concealed conditions reveal existing pedestals, stringers, anchors, or related components that are damaged, corroded, missing, or incapable of being properly adjusted/leveled, please confirm whether repair/replacement will be considered additional work or is to be included in the base bid.

ANSWER: *Repair and replacement of damaged, corroded, or missing existing framework is not within the base bid scope of work. The contractor's base scope is limited to cleaning, adjusting, and leveling the existing framework. If unusable or damaged framework components are discovered during construction, the contractor shall notify the Contracting Officer, and any necessary remediation will be addressed via a contract modification under the appropriate contract clauses.*

17. Wall Bracing
The drawings indicate that walls may require bracing where they do not extend to the structural floor deck. Please identify, if known, which partitions require temporary or permanent bracing and clarify whether contractor-designed temporary bracing is acceptable or whether the Government will provide a required bracing detail.

ANSWER: *Teknion Walls may require bracing if necessary to remove the panels beneath. It is up to the contractor to determine if bracing is required to safely remove existing panels and install the new floor system.*

18. Government Furniture Coordination / Phasing
Please confirm that the Government-provided furniture contractor will completely clear each designated work area before raised-floor demolition begins. Please also advise whether bidders should anticipate any specific downtime between phases for furniture relocation and Government inspection/acceptance or how long will be the down time between phases.

ANSWER: *Correct. No anticipated down time expected.*

19. Specified Flooring Lead Time / Approved Equivalent
During our procurement review, we have been advised that the specified/basis-of-design raised-floor panel configuration may currently have an estimated 14–18 month lead time. Please confirm whether this procurement duration is compatible with the Government's anticipated project schedule.

ANSWER: *No, an estimated 14–18 month lead time does not meet the Government's performance schedule. The resulting award will be a DPAS-rated order, requiring the contractor to invoke DPAS priority with manufacturers to meet required delivery timelines. In accordance with the solicitation, offerors may also submit compliant equivalent products that satisfy all technical specifications and project milestones.*

20. In order to quote this if you are planning on replacing the panels, but keeping the understructure per the specifications, we would need to see photos of the existing understructure.

Without seeing the understructure, we cannot confirm what type of raised floor is currently in place, and cannot confirm fit or compatibility of panels. Attached is a photo guide. Can the government provide types of photos referenced in this attached guide

ANSWER:

Photos have been requested, but due to facility security and operational access constraints, the Government cannot currently furnish photographs of the existing understructure. Existing framework specifications and known system characteristics are outlined within the specification and drawings. In accordance with the contract terms, the contractor shall verify fit, compatibility, and interface with the existing framework post-award during the formal submittal process.

ALL OTHER SOLICITATION TERMS AND CONDITIONS REMAIN UNCHANGED.

PLEASE READ THIS ENTIRE NOTICE CAREFULLY AS IT CONSTITUES THE ONLY NOTICE THAT WILL BE ISSUED.

Solicitation Number: N66604-26-Q-0473
Project Title: B1346 4th Floor Raised Flooring Panel Replacement, Multiple Rooms
Location of Work: Naval Undersea Warfare Center Division Newport (NUWCDIVNPT)
Site Visit Date/Time: September 9, 2026 @ 10:00 am EST
Response Due Date/Time: September 28, 2026 @ 2:00pm EST

This is a Request for Quotations (RFQ) for construction services prepared in accordance with the format in FAR Part 13, Simplified Acquisition Procedures, as supplemented with additional information included in this notice, and incorporating the construction principles of FAR Part 36. This announcement constitutes the only solicitation; quotations are being requested and a separate written solicitation will not be issued.

The Naval Undersea Warfare Center Division Newport (NUWCDIVNPT) has a requirement for B1346 4th Floor Raised Flooring Panel Replacement.

This is a completion effort with a Construction completion date of **200** Days after Date of Contract Award.

The associated North American Industrial Classification System (NAICS) code for this procurement is 236220 with a small business size standard of 45M.

This procurement is a Total Small business set-aside.

The Naval Undersea Warfare Center Division Newport (NUWCDIVNPT) intends to award a Firm Fixed Price Type purchase order to the responsible offeror whose conforming quotation represents the Lowest Price Technically Acceptable (LPTA) to the Government.

Please provide NUWCDIVNPT Code 02 Contracting office with a quotation on a Firm Fixed Price, Completion basis prior to September 28, 2026 at 2:00PM EST for the following:

CLIN 0001: B1346 4th Floor Raised Flooring Panel Replacement, Multiple Rooms in accordance with Drawing #26-013A (Attachment 2) and Government Specifications (Attachment 1)**. The contractor shall provide all personnel, equipment, tools, materials, supervision, quality control, and transportation necessary to perform construction services as described in the attached Specification and Drawings.**

CLIN 0002: Construction Submittals in support of CLIN 0001 (NOT SEPERATELY PRICED Provide pricing for CLIN 0002 within CLIN 0001

INSTRUCTIONS TO OFFERORS

General Notes:

Note 1: For pricing purposes, the anticipated award date is October 2026.

Note 2: The Product Service Code for this requirement is Z1AZ.

Note 3: Work shall be conducted in accordance with U.S. Army Corps of Engineers EM 385-1-1and OSHA standards.

Note 4: Magnitude: Between $250,000 and $500,000

Note 5: Offeror MUST be registered in the System for Award Management (SAM) to be considered for award. Bid Guarantee is also required to be considered for award.

Note 6: Offerors shall provide fill-in information for all clauses/provisions that require it.

Note 7: To be eligible for award, all apparent successful offerors must have a current "Final Level 1 (Self)" assessment and an annual affirmation of continuous compliance recorded in the Supplier Performance Risk System (SPRS). The contractor shall provide along with their proposal a CMMC Unique Identifier(s) (UID) generated by SPRS for the contractor information system(s) that will process Federal Contract Information (FCI) during contract performance. https://www.sprs.csd.disa.mil/cmmc.htm

Note 8: Davis Bacon Wage Determination for Rhode Island dated 30 July 2026 is attached (Attachment 3).

Note 9: Any contract awarded as a result of this solicitation will be a DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

Note 10: Method of Payment: Electronic Payment through Wide Area Workflow (WAWF) will be used.

Note 11: The contractor shall furnish any required Performance and Payment Bonds within 10 Days of award.

Note 12: This is a new requirement.

Note 13: Offerors are hereby notified that, from time to time, the Government may post additional information to the SAM.gov web site relating to this RFQ (e.g., responses to questions, amendments, etc.). It is the Offeror's responsibility to check the web site for any such information.

Note 14: A site visit will be held on September 9, 2026 @ 10:00 AM (EST). Please see attached site visit instructions for complete details on base access.

All questions concerning this procurement, either technical or contractual, must be submitted via email by September 16, 2026. No direct discussion between the technical representative and prospective Offeror will be conducted. Questions shall be submitted to the following points of contact:

PRIMARY: Amy Prisco; Email: amy.k.prisco.civ@us.navy.mil
ALTERNATE: Michael Ouellette; Email: michael.n.ouellette.civ@us.navy.mil

The Government intends to evaluate quotes and award a contract without discussions with offerors. Therefore, the offeror's initial quote should contain the offeror's best terms from a price and technical standpoint.

The RFP will be made available only through the Government Point of Entry, also known as Contract Opportunities (formerly FBO) at: http://www.sam.gov

PROPOSALS

Offerors shall submit proposals by electronic means. All electronic submissions shall be sent to amy.k.prisco.civ@us.navy.mil and michael.n.ouellette.civ@us.navy.mil

Submissions must be received by the closing date and time identified above.

(A) **Proposal Format.** Proposal attachments must be in formats readable by Microsoft Office or Adobe PDF. Offerors shall comply with the detailed instructions for the format and content of the proposals; proposals that do not comply may be considered unacceptable and may render the Offeror ineligible for award.

(B) **Organization.** In the Technical Proposal, the Offeror shall provide information and documentation to clearly and concisely identify the Offeror's overall ability to meet the requirements of the so solicitation. The Offeror shall divide the Technical Proposal into the following factors in the order listed below:

TECHNICAL PROPOSAL

Factor 1: Technical Approach

Offeror shall provide a narrative detailing their technical approach to accomplishing the work identified in the Specification and Drawings. The narrative shall be divided into the following two subfactors:

The Offeror shall provide a detailed narrative (not to exceed 15 pages) describing its technical approach. This narrative must demonstrate a thorough understanding of the project requirements and present a logical, comprehensive plan for construction. At a minimum, the narrative must include:

1) A step-by-step description of the Offeror's plan for executing the work, from pre-construction through project closeout. This should go beyond simply restating the specifications and should detail the Offeror's specific methods and sequencing for major features of work.

2) A discussion of the primary risks and challenges associated with this project (e.g., managing long-lead time equipment, site logistics, quality control) and the Offeror's specific strategies to mitigate them.

3) A preliminary draft project schedule demonstrating the ability to complete all work within the identified period of performance including the following substantiating information associated with schedule generation and the risk assessment thereof:

    1. Schedules for other work that is ongoing at the same time proposed to be performed coincident with performance on this order.

    2. The offeror’s assessment of any schedule risk associated with interference between ongoing work and the work under this task order.

    3. The offeror’s assessment of how key personnel will adequately support the work under this project as well as any other ongoing work and still meet requirements.

    4. The offeror’s assessment of any risk associated with non-key resources including labor, equipment, and the degree of involvement of subcontractors associated with the level of coincident ongoing work on other requirements.

Factor 2: Key Personnel
Superintendent: Provide resume and certifications for project superintendent. Project superintendent must have a minimum of 10 years experience in construction with at least 5 of those years as a superintendent on projects similar in size and complexity. The individual must be familiar with the requirements of EM 385-1-1 and have experience in the areas of hazard identification and safety compliance. The individual must be capable of interpreting a critical path schedule and construction drawings.

Quality Control Manager: Provide the resume and certifications for the project Quality Control Manager (QCM). The QCM shall have a minimum of 5 years combined experience as a

superintendent, inspector, QCM, project manager, or construction manager on similar size and type construction contracts which included the
major trades that are part of this contract. The individual must be familiar with the requirements of the EM 385-1-1 and have experience in the areas of hazard identification and safety compliance. The QCM shall have completed the course Construction Quality Management for Contractors and will have a current certificate.

Site Safety and Health Officer: Provide the resume and certifications for the project Site Safety and Health Officer (SSHO). The SSHO must have the required training, experience, and qualifications in accordance with EM 385-1-1 Section 2-3, and all associated sub-paragraphs as it pertains to a Level 1 SSHO.

Factor 3: Past Performance

The Offeror shall provide a maximum of three (3) past performance references that reflect recent and relevant experience. A reference is considered recent if the work was performed within three (3) years of this solicitation's closing date. A reference is considered relevant if it is of a similar size, scope, and complexity to the work required by this solicitation.

For each reference, the Offeror shall provide:

- Contract/Task Order Number
- Contract/Task Order Type (Firm-Fixed-Price, T&M, etc.)
- Total Contract/Task Order Value
- A brief description of the work performed, including a discussion of how the project is relevant to the work being proposed.
- Contact information for the client's primary technical and contracting points of contact (e.g., Contracting Officer, COR, Program Manager).

Factor 4: PRICE

Offerors shall provide an all-inclusive firm-fixed-price for CLIN 0001. The work and/or deliverables required under CLIN 0002, which are Construction submittals, are not separately priced. The Offeror shall include all costs associated with the performance of CLIN 0002 within the total price proposed for CLIN 0001.

EVALUATION OF OFFERS

The Government intends to award a firm-fixed-price contract to the responsible Offeror submitting the lowest evaluated price proposal that is rated "Acceptable" for all non-price

evaluation factors. The Government intends to award without discussions but reserves the right to conduct discussions if determined to be in the Government's best interest.

Factors

Proposals will be evaluated based on the following four (4) factors.

FACTORS	SUBFACTORS
1.0 - Technical Approach	None
2.0 - Key Personnel	None
3.0 - Past Performance	None
4.0 - Price	None

The Government will evaluate the Offeror's Technical Approach on an "acceptable" or "unacceptable" basis. The evaluation will assess whether the offeror has demonstrated a comprehensive understanding of the project and a sound, actionable plan for successful completion. A proposal that is vague, fails to address the required elements, or demonstrates a lack of understanding will be rated "unacceptable."

To receive a rating of "Acceptable," the Offeror's proposal must substantively address all of the following elements:

1) The proposal must provide a credible, step-by-step description of the Offeror's plan for executing the work from pre-construction through project closeout. The evaluation will assess whether this plan details the Offeror's specific methods and sequencing for major features of work, going beyond a simple restatement of the specifications.

2) The proposal must identify primary risks and challenges associated with this project and present specific, logical strategies to mitigate them. The Government will evaluate the credibility and effectiveness of the proposed mitigation strategies.

3) The proposal must include a draft project schedule that logically demonstrates the ability to complete all required work within the contract's identified period of performance.

EVALUATION STANDARDS FOR KEY PERSONNEL

Candidates must meet the following minimum thresholds to receive an Acceptable rating:

Proposed Position	Minimum Experience	Required Certifications & Competencies
Project Superintendent	• 10+ years in construction. • 5+ years as lead superintendent on similar projects.	• Documented familiarity with EM 385-1-1.

		• Proven ability to interpret CPM schedules and construction drawings.
Quality Control Manager	• 5+ years combined experience (Superintendent, Inspector, QCM, PM, or CM) on similar contracts.	• Active Construction Quality Management (CQM) for Contractors certificate. • Documented familiarity with EM 385-1-1.
Site Safety & Health Officer	• Meets EM 385-1-1 Section 2-3 requirements for Level [1] SSHO.	• Active OSHA 30-Hour (or equivalent). • 24 hours SOH training within the last 3 years. • Active First Aid/CPR/AED cards.

The Government will evaluate Past Performance using the following adjectival ratings:

PAST PERFORMANCE*	ACCEPTABLE	UNACCEPTABLE
	To be rated "Acceptable," the Offeror's past performance must demonstrate a history of successful contract performance, and the Government must have a reasonable expectation that the Offeror will successfully perform the required effort.	An Offeror will be rated "Unacceptable" if their past performance record indicates performance that was unsuccessful or of a quality that creates significant doubt that the Offeror will successfully perform the required effort.

*Review of past performance will be based on available information in the Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIIS) and information in provided references. The Government reserves the right to contact any individuals identified by the offeror as part of their submitted references.

The Government will evaluate the price proposal of all technically acceptable Offerors for completeness and reasonableness. Price will not be adjectivally rated. The evaluated price of all technically acceptable proposals will be ranked from lowest to highest to determine the awardee.

CLAUSES INCORPORATED BY REFERENCE

52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020)
52.204-23,	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023)
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)
52.209-6,	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025)
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)
52.219-6,	Notice of Total Small Business Set-Aside (Nov 2020)
52.219-8,	Utilization of Small Business Concerns (Jan 2025)
52.222-3,	Convict Labor (Jun 2003)
52.223-5	Pollution Prevention and Right-to-Know Information MAY 2011
52.222-6	Construction Wage Rate Requirements
52.222-7	Withholding of Funds
52.222-8	Payrolls and Basic Records
52.222-9	Apprentices and Trainees
52.222-10	Compliance with Copeland Act Requirements
52.222-11	Subcontracts (Labor Standards)
52.223-90	Instructions to Contractor's Environmental Representatives
52.225-9	(Buy American - Construction Materials).
52.228-13	Alternative Payment Protections.
52.228-15	Performance and Payment Bonds-Construction.
52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct2018)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Aug 1996)
52.233-4	Applicable Law for Breach of Contract Claim (Oct 2004)
52.236-2	Differing Site Conditions APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work APR 1984
52.236-5	Material and Workmanship.
52.236-6	Superintendence by the Contractor.
52.236-7	Permits and Responsibilities NOV 1991
52.236-8	Other Contracts.
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.
52.236-10	Operations and Storage Areas.
52.236-12	Cleaning Up.
52.236-13	Accident Prevention NOV 1991
52.236-14	Availability and Use of Utility Services.
52.236-16	Quantity Surveys.
52.236-17	Layout of Work.
52.236-21	Specifications and Drawings for Construction (Feb 1997)
52.237-1	Site Visit.
52.237-2	Protection of Government Buildings, Equipment, and Vegetation APR 1984
52.243-5	Changes and Changed Conditions (Apr 1984)
52.245-1	Government Property SEP 2021

52.204-7 System for Award Management OCT 2018
52.232-5 Payments under Fixed-Price Construction Contracts MAY 2014
52.232-39 Unenforceability of Unauthorized Obligations JUN 2013
52.249-1 Termination for Convenience of the Government (Fixed-Price) (Short Form) (Apr 1984)
52.249-10 Default (Fixed-Price Construction) (Apr 1984)
252.204-7012 Safeguarding Covered Defense Info and Cyber Incident Reporting (JAN 2023)
252.204-7020 NIST SP 800-171 DoD Assessment Requirements (MAR 2024)
252.204-7021, Cybersecurity Maturity Model Certification Requirements.
252.204-7025, Compliance with Safeguarding Covered Defense Information Controls (Notice).
252.223-7008 Prohibition of Hexavalent Chromium (Jun 2013)
252.232-7003 Electronic Submission of Payment Requests and Receiving Reports DEC 2018
252.232-7006 Wide Area WorkFlow Payment Instructions (DEC 2018)
252.211-7003 Item Identification and Valuation
252.213-7000 Notice to Prospective Suppliers on Use of Supplier Performance Risk System in Past Performance Evaluations
252.215-7013 Supplies and Services Provided by Nontraditional Defense Contractors
252.236-7001 Contract Drawings and Specifications (Aug 2000)
252.246-7008 Sources of Electronic Parts

CLAUSES INCORPORATED BY FULL TEXT

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov

C-223-W002 ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)

(a) The contractor shall ensure that each contractor employee reads any necessary safety documents within 30 days of commencing performance at any Government facility. Required safety documents can be obtained from the respective safety office. Contractors shall notify the Safety office points of contact below to report completion of the required training via email. The email shall include the contractor employee's name, work site, and contract number.

(b) It is expected that contractor employees will have received training from their employer on hazards associated with the areas in which they will be working and know what to do in order to protect themselves. Contractors are required to adhere to the requirements of 29 CFR 1910, 29 CFR 1926 and applicable state and local requirements while in Government spaces. The contractor shall ensure that all on-site contractor work at the Government facility is in accordance with any local safety instructions as provided via the COR. The contractor shall

report all work- related injuries/illnesses that occurred while working at the Government site to the COR.

(c) Contractors whose employees perform work within Government spaces in excess of 1000 hours per calendar quarter during a calendar year shall submit the data elements on OSHA Form 300A, Summary of Work Related Injuries and Illnesses, for those employees to the safety office, via the COR by 15 January for the previous calendar year, even if no work related injuries or illnesses occurred. If a contractor's injury/illness rates are above the Bureau of Labor Statistics industry standards, a safety assessment may be performed by the Safety Office to determine if any administrative or engineering controls can be utilized to prevent further injuries/illnesses, or if any additional Personal Protective Equipment or training will be required.

(d) Any contractor employee exhibiting unsafe behavior may be removed from the Government site. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(e) The Safety Office points of contacts are as follows: **TO BE PROVIDED AT AWARD**

C-228-H002 MINIMUM INSURANCE REQUIREMENTS (NAVSEA) (JAN 2019)

(a) In accordance with the clause(s) of this contract entitled "Insurance--Work On a Government Installation" (FAR 52.228-5) and "Liability and Insurance" (DFARS 252.217-7012), as applicable, the Contractor shall procure and maintain insurance, of at least the kinds and minimum amounts set forth below:

(i) Workers' compensation and employer's liability coverage shall be at least $100,000, except as provided in FAR 28.307-2(a), if applicable

(ii) Bodily injury liability insurance coverage shall be written on the comprehensive form of policy of at least $500,000 per occurrence.

(iii) Automobile liability policies covering automobiles operated in the United States shall provide coverage of at least $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(b) To be approved by the Contracting Officer, insurance certificates must include the following cancellation policy statement: Prior to cancellation or material change in coverage, the contractor shall give 30 days written notice to the Contracting Officer.

(c) Physical work cannot begin until the insurance certificate has been approved by the Contracting Officer. Failure to provide an acceptable insurance certificate will not remove the contractor's responsibility to meet the delivery requirements outlined in Section F and FAR 52.211-11, Liquidated Damages – Supplies, Services, or Research and Development, if applicable.

52.211-12 LIQUIDATED DAMAGES--CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of $200 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be DX rated order; X DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.228-1 BID GUARANTEE (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and

sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States.

The Contracting Officer will return bid guarantees, other than bid bonds, (1) to unsuccessful bidders as soon as practicable after the opening of bids, and (2) to the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.-

(c) The amount of the bid guarantee shall be 20 percent of the bid price.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.-

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of provision)

CONTRACTOR REQUIREMENTS FOR PERFORMANCE ON A GOVERNMENT SITE (APR 2018)

(a) Control of Contractor Personnel

The contractor shall comply with the requirements of NUWCDIVNPTINST 5500.4C regarding performance at Government facilities. All persons engaged in work while on Government property shall be subject to search of their persons and vehicles at any time by the Government, and shall report any known or suspected security violations to the Security Department of the contracting activity. Assignment, transfer, and reassignment of contractor personnel shall be at the discretion of the contractor. However, the contractor shall remove from contract performance any person who endangers life, property, or national security through improper conduct. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(b) Contract Personnel Administration

The contractor is responsible for managing its employees and guarding against any actions that are of the nature of personal services or give the perception that personal services are being provided. If the contractor feels that any actions constitute, or are perceived to constitute personal services, it is the contractor's responsibility to notify the PCO immediately in accordance with the clause FAR 52.243-7. When on-site in Government office spaces, laboratories, test facilities, or ship assets, Contractor employees shall be clearly identified as a Contractor (e.g. utilizing Common Access Cards (CACs) and sign identifications in office spaces). In addition, Contractor employees shall identify themselves as Contractor personnel when answering telephones and sending emails. Contractor personnel cannot lead/manage/supervise Government personnel. Contractor program /project managers/Senior Technical Representative (STR) shall be clearly identified and known as such by Government employees. As circumstances permit, periodic meetings shall be conducted between the COR and the Contractor organization program manager/project manager.

(c) Early Dismissal and Closure of Government Facilities

When a Government facility is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal and during periods of inclement weather, onsite contractors should monitor radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non- working hours to the contract. Contractors are responsible for predetermining and disclosing their accounting standards, and company policy. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy.

(d) Training Requirements

(A) The contractor shall ensure that each contractor employee performing work at any NUWC Division Newport site take the following actions:

• Complete all required trainings as indicated on the following website: https://newportalv3.nwpt.nuwc.navy.mil/10/101/Training/SitePages/TrainingWelcome.aspx
• Read the documents titled “Occupational Safety and Health Information for Contractors” and “NUWC Division Newport Environmental Policy”, available at the following website, prior to performing any work: http://www.navsea.navy.mil/Home/WarfareCenters/NUWCNewport/ContactUs/VisitorInformation.aspx
• Complete Environmental Awareness training, available at the following website, within 30 days of commencing performance: http://www.navsea.navy.mil/Home/WarfareCenters/NUWCNewport/ContactUs/VisitorInformation.aspx

(2) The contractor shall email the following web address indicating completion of items (B) and (C) above upon completion of both: NWPT.NUWC_NPT_1023_Training@navy.mil

(e) Safety Requirements

(1) Prior to commencing any work that falls under the following areas, the contractor shall provide a complete listing of all qualified and trained employees who will perform the work on company letterhead to the Contracting Officer's Representative, or, if no COR is assigned, to the NUWC Division Newport Safety Office:

(A) Permit required Confined Space Program
(B) Control of Hazardous Energy (Lock out / Tag out)
(C) Respiratory Protection
(D) Walking-Working Surfaces, Fall Protection Program and Scaffolding

(2) The contractor shall follow the posted provisions of the building's Emergency Action Plan (EAP) for any mishap, incident, or emergency situation.

(3) The contractor shall report unsafe work conditions, safety hazards, and any mishaps (injury/property damage) to their supervisor, the COR, and the NUWC Division Newport Safety Office.

In order to comply with Division Newport's Minor Source Air permit and EPA's Emergency Planning and Community Right-to Know Act (EPCRA), the contractor must provide usage reports for all air quality and EPCRA regulated activities. This includes reporting all hazardous materials brought onsite, a copy of the corresponding Safety Data Sheets, and the total volume or weight of each product used monthly. The contractor shall complete the provided Hazardous Materials Inventory Log and submit it to Environmental, no later than the 10th day of the following month. In addition, the contractor shall comply with the state air quality regulations cited in this form. If any portable generators are used at the facility, the contractor shall complete the Generator Fuel Tracking Form and submit it to Environmental, no later than the 10th day of the following month. Please submit to Environmental using the following email address. TO BE PROVIDED AT AWARD

End of text

LIST OF ATTACHMENTS:
Attachment 1: Specifications REV 1
Attachment 2: Drawings # 26-013A REV 1
Attachment 3: Davis Bacon Wage Determination (7/30/26)
Attachment 4: Hazmat Usage Log
Attachment 5: Generator Usage Log
Attachment 6: Site Visit Instructions